

# **Tentative Rulings for September 11, 2026**

## **Department PS1**

**To request oral argument, you must notify Judicial Secretary Molly Frabotta at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

**Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.**

1.

| CASE #      | CASE NAME               | HEARING NAME                                   |
|-------------|-------------------------|------------------------------------------------|
| CVPS2400400 | BUXBAUM VS<br>MCFARLAND | MOTION FOR OFFSETS OF GOOD<br>FAITH SETTLEMENT |

**Tentative Ruling:** In this action, Plaintiffs sought disgorgement of money paid to McFarland Defendants for performing contractor work which required a valid contractor's license in violation of the applicable provisions of the Contractor's State Licensing Law ("CSLL", Bus. & Prof. Code, § 7010 et seq.). The strict forfeiture under the disgorgement provision of section 7031, subdivision (b), allows the hirer to bring a disgorgement claim "to recover all compensation paid to the unlicensed contractor for performance of any act or contract." (Bus. & Prof. Code, § 7031(b), *italics added.*)

McFarland Defendants contend that an offset of \$527,500, which Plaintiffs received from other defendants in this action as court-approved good faith settlement, should be applied to the amount McFarland Defendants liable in disgorgement award. Their basis for this contention is Code of Civil Procedure section 877, which provides in relevant parts:

Where a release, dismissal with or without prejudice, or a covenant not to sue or not to enforce judgment is given in good faith before verdict or judgment to one or more of a number of tortfeasors claimed to be liable for the same tort ... it shall have the following effect: [¶]

(a) It shall discharge any other such party from liability unless its terms so provide, but it shall reduce the claims against the others in the amount stipulated by the release, the dismissal or the covenant, or in the amount of the consideration paid for it, whichever is the greater. [¶]

This argument fails primarily for the reason Code of Civil Procedure section 877 expressly applies to tort claims and has no application to offset a good faith settlement of joint tortfeasors in an action for statutory disgorgement claim. As McFarland Defendants concede, no case authority supports such a proposition in applying section 877's setoff to a disgorgement claim granted under Business and Professions Code section 7031, subdivision (b). In reply, McFarland Defendants contend that the underlying governing principle of section 877 is broader than the statute's label which is to prevent a double recovery and to apply equitable credits already received on the judgment. This argument also fails.

First, adopting the interpretation advocated by McFarland Defendants would require the Court to inject meaning into section 877 that is contrary to its express language. "The touchstone of statutory interpretation is the probable intent of the Legislature," and the "first step in determining that intent is to scrutinize the actual words of the statute, giving them a plain and commonsense meaning." [Citation.] (*Quarterman v. Kefauver* (1997) 66 Cal.App.4th 1366, 1371.) The Supreme Court has indicated that the purpose of the CSLL's forfeiture provisions is to "impose[s] strict and harsh penalties for contractor's failure to maintain proper licensure." (*MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co., Inc.* (2005) 36 Cal.4th 412, 418.) Because statute provides for strict forfeiture of all compensation for work performed by unlicensed

contractor “regardless of the equities,” “unlicensed contractors are prohibited from asserting equitable defenses, such as estoppel, to forfeiture.” [Citation.] (*Judicial Council of California v. Jacobs Facilities, Inc.* (2015) 239 Cal.App.4th 882, 896-897.)

Second, case law is well-established in that the forfeiture provision of CSLL authorizing disgorgement requires the unlicensed contractor to forfeit “all compensation received without reductions or offsets for the value of material or services provided.” (*Ahdout v. Hekmatjah* (2013) 213 Cal.App.4th 21, 30; Bus. & Prof. Code, § 7031(b).) “‘[A]ll compensation paid’ does not mean all compensation less reductions for offsets.” (*White v. Cridlebaugh* (2009) 178 Cal.App.4th 506, 520-521.) This means an unlicensed contractor has no setoff rights against an owner or claims for indemnity or contribution against third parties. (*Id.* at 522.)

Moreover, section 7045 of the Business and Professions Code does not operate to offset against the amount awarded as disgorgement under section 7031, subdivision (b). Section 7045 provides that the CSLL “does not apply to the sale or installation of any finished products, materials, or articles of merchandise that do not become a fixed part of the structure....” (Bus. & Prof. Code, § 7045.) Here, the Court has entered judgment for disgorgement in favor of Plaintiffs to be repaid the total \$903,161,19 Plaintiff Buxbaum paid to McFarland Defendants. The judgment was for the amount adjudicated as disgorgement award under section 7031, subdivision (b) of the CSLL. McFarland Defendants cannot now argue that any portion of the disgorgement amount must be relitigated to be determined exempt from the CSLL pursuant to section 7045.

Defendants David McFarland and David McFarland Group, LLC’s Motion to Reduce the Disgorgement Judgment is DENIED.

## 2.

| CASE #      | CASE NAME            | HEARING NAME                                                              |
|-------------|----------------------|---------------------------------------------------------------------------|
| CVPS2400400 | BUXBAUM VS MCFARLAND | MOTION AND MOTION FOR ORDER REQUIRING DEFENDANTS TO PAY EXPENSES OF PROOF |

**Tentative Ruling:** As a preliminary matter, it should be noted, while the continued motion was pending hearing, on August 12, 2026, McFarland Defendants filed a notice of appeal of the judgment entered by the Court on August 07, 2026, for total judgment award of \$1,224,783.94. Generally, Code of Civil Procedure section 916, subdivision (a), imposes an automatic stay on matters embraced in or affected by the appealed judgment. (See *Blizzard Energy, Inc. v. Schafers* (2021) 71 Cal.App.5th 832, 842, fn. 4; *Varian Med. Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 196-198.) However, the pending appeal does not affect the Court’s ability to hear this motion, as “an appeal does not stay proceedings on ‘ “ ‘ancillary or collateral matters which do not affect the judgment [or order] on appeal” even though the proceedings may render the appeal moot.’ [Citation.]” (*Association for Los Angeles Deputy Sheriffs v. Macias* (2021) 63 Cal.App.5th 1007, 1028 [appeal of judgment does not deprive trial court of jurisdiction to consider a party’s motion for costs to prove the truth of matters which the opposing party failed to admit].)

As the Court has previously noted on July 15, 2026, Plaintiff has successfully shown that he is entitled to cost of proof as McFarland Defendant provided no evidence

that they had good reasons to believe they would prevail on the issues raised in the RFAs at issue and that they were justified in denying the requests. Plaintiff requested to be reimbursed \$165,360 for 235.1 hours spent on the cost of proof and additional \$12,545 for 19.3 hours for preparing the motion and the related reply. The Court continued the hearing on the motion to August 25, 2026, after finding that Plaintiff had failed to present evidence to show that fees were reasonably incurred in proving the matter at issue (Code Civ. Proc., § 2033.420(a)), instructing Plaintiff to file supplemental declaration along with the appropriate time record in order for the Court to determine the reasonableness of the fees requested. In his updated request, Plaintiff seeks attorney's fees for the total amount of \$167,375, representing 235.1 hours in the amount of \$152,815 purportedly devoted to proving the matter unreasonably denied; 19.2 hours in the amount \$12,480 for preparing the instant motion and the related reply; and an additional 3.2 hours in the amount \$2,080 for supplemental work of reviewing billing records, calculated at his counsel's purported hourly rate of \$650.

If the party responding to request for admission fails to admit the truth of the matter requested, and the requesting party thereafter proves the truth of that matter, the requesting party may move for an order requiring the responding party to pay the costs and fees incurred in proving that matter. (Code Civ. Proc., § 2033.420(a)).) On the requesting party's motion, the court is required to ("shall") make this costs and expenses award, unless the responding party prove any of the excuses further enumerated in this section. Costs and expenses cannot be awarded under section 2033.420 if any of the exceptions are met by the opposing party that:

(1) "An objection to the request was sustained or a response to it was waived under Section 2033.290."

(2) "The admission sought was of no substantial importance."

(3) "The party failing to make the admission had reasonable ground to believe that party would prevail on the matter."

(4) "There was other good reason for the failure to admit." (Code Civ. Proc., § 2033.420(b)(1)-(4).)

Costs for which McFarland Defendants failed to admit went to the ultimate issue of this case: whether the services performed by McFarland Defendants in connection with the project constituted work requiring a California contractor's license. What is left to be determined is whether Plaintiff's requested fees are reasonable in view of the supplemental reply and time records provided by Plaintiff's counsel. Here, based on the review of the attorney's time record, the amount claimed by Plaintiff are reduced to eliminate fees which Plaintiff has failed to show are attributable to McFarland Defendants' failure to admit to RFAs.

#### Fees incurred beyond the cost of proof:

The costs and expenses award is limited to "reasonable expenses incurred ... including reasonable attorney's fees" in proving matters unreasonably denied. (Code Civ. Proc., § 2033.420(a).) As courts have noted, " [t]he primary purpose of requests for

admissions is to set at rest triable issues so that they will not have to be tried; they are aimed at expediting trial. [Citation.] The basis for imposing sanctions ... is directly related to that purpose. Unlike other discovery sanctions, an award of expenses ... is not a penalty. Instead, it is designed to reimburse reasonable expenses incurred by a party in proving the truth of a requested admission ... [citations] such that trial would have been expedited or shortened if the request had been admitted.’ [Citations.]” (*Stull v. Sparrow* (2001) 92 Cal.App.4th 860, 865.) As such, the statute “authorizes only expenses for proving matters denied by the opposing party,” (*Garcia v. Hyster Co.* (1994) 28 Cal.App.4th 724, 736.) Accordingly, only “[e]xpenses of making the proof are recoverable. ‘ “ ‘Proof’ is the establishment by evidence of a requisite degree of belief concerning a fact in the mind of the trier of fact or the court.” (Evid. Code, § 190.) ’ ’ ” (*Barnett v. Penske Truck Leasing Co., L.P.* (2001) 90 Cal.App.4th 494, 498-499.)

Here, however, Plaintiff claims that he is entitled to recover fees beyond the last trial date of February 04, 2026, on which Plaintiff presented last of his evidence and rested. Therefore, 47.15 hours of fees purportedly incurred for post-trial matters beyond February 04, 2026, shall be excluded. Although it is true that the Court cannot deny costs of proof outright that are mandated by statute, it has discretion to determine the amount of reasonable expense attributable to failure to admit and “exclude any claimed expenses to the extent they relate to issues outside the scope of the request for admission.” (See *Association for Los Angeles Deputy Sheriffs v. Macias*, *supra*, 63 Cal.App.5th at 1031.)

Expenses which are not necessary for proving matters unreasonably denied:

Only expenses resulting from proving matters unreasonably denied should be recoverable. That is, the fees which would have been eliminated had Defendants admitted the matters for which admissions were requested and obviating the need for Plaintiff to produce proof on such issue.

McFarland Defendants argue that contrary to what Plaintiff’s counsel has declared, there are at least 8.2 hours billed on 8/1/2025, 9/16/2025, 11/21/2025, 12/03/2025, 12/04/2025, 12/05/2025, 1/15/2026, 1/21/2026, 1/22/2026, which concern damages, disgorgement, settlement, Plaintiff’s deposition, clerical exhibit assembly that are not related to proving Defendants’ contractor status and beyond cost to be compensated under section 2033.420. As McFarland Defendants have correctly noted, these entries, on their face, do not relate to matters unreasonably denied and therefore are excluded from the cost of proof.

Improper block billing:

As noted by McFarland Defendants, Plaintiff’s counsel has engaged in the practice of block billing which makes it practically impossible to segregate recoverable from unrecoverable fees. This burdens the Court in having to go through line by line as to which portion of fees should be awarded. “Block billing occurs when ‘a block of time [is assigned] to multiple tasks rather than itemizing the time spent on each task.’ [Citation.]” (*Mountjoy v. Bank of America, N.A.* (2016) 245 Cal.App.4th 266, 279.) “Block billing presents a particular problem for a court seeking to allocate between reimbursable and reimbursable fees, and trial courts are granted discretion ‘to penalize [block billing] when the practice prevents them from discerning which tasks are compensable and which are

not.’ [Citation.]” (*Marriage of Nassimi* (2016) 3 Cal.App.5th 667, 695.) Furthermore, many of the block-billed entries include purely clerical work which are not recoverable. “It is well established that a plaintiff may not recover fees for time spent on purely clerical work.” (*Zargarian v. BMW of North America, LLC* (2020) 442 F.Supp.3d 1216, 1229, citing *Davis v. City & Cty. of S.F.* (9th Cir. 1992) 976 F.2d 1536, 1543, vacated on other grounds by *Davis v. City & Cty. of S.F.* (9th Cir. 1993) 984 F.2d 345 “[P]urely clerical or secretarial tasks should not be billed at a paralegal [or lawyer’s] rate, regardless of who performs them ... [The] dollar value [of such non-legal work] is not enhanced just because a lawyer does it[.] This justifies an additional reduction.

First, McFarland Defendants argue that Plaintiff attributes the entire 30.2 hours his attorney billed for three days of trial attendance on 2/2/2026, 2/3/2026, 2/4/2026 for a total of \$19,630, whereas the RFA matters relate to one issue out of many determined at trial. Cost of proof award is “part of a procedural mechanism intended to expedite trial by reducing the number of triable issues that must be adjudicated.” (*City of Glendale v. Marcus Cable Associates, LLC* (2015) 235 Cal.App.4th 344, 359.) Because Plaintiff has not properly demonstrated the hours attributable to recoverable matters, he shall only recover attendance for first day of trial, resulting in a reduction of 18.5 hours.

Defendants also attack certain billing entries demonstrating Plaintiff’s use of block billing makes discerning between recoverable and nonrecoverable difficult. These refer to entries entered on 1/16/2026, 1/21/2026, 1/22/2026, and 3/30/2026, which, by Plaintiff’s own descriptions, do not indicate what portion of the work was dedicated towards proving the matters which would not have become a triable issue but for Defendants’ denials of RFAs. As set forth above, any billing entered subsequent to the last date of trial should be excluded. As such the item billed on 3/3/2026 for 1.8 hours has already been excluded from the fee calculation. The dates of 1/21/2026 and 1/22/2026 have already been factored in the reduction above.

#### Fees incurred in connection with litigating cost of proof:

Plaintiff seeks 19.2 hours in the amount of \$12,480 for preparing the instant motion and the related reply; and an additional 3.2 hours in the amount of \$2,080 for supplemental work of reviewing billing records. The 19.2 hours spent on the fee motion and related reply is excessive and should be curtailed to 12 hours for preparing the motion and the reply. Plaintiff’s claim of additional 3.2 hours is unreasonable, especially in light of the fact that the supplemental work in reviewing time record was necessitated by Plaintiff’s counsel’s deficient evidence submitted in support of cost of proof under section 2033.420. Moreover, counsel already billed for 1.3 hours on 5/19/2026 for time spent on reviewing billing records and invoices for use in the instant motion. The Court shall award 1.5 hours for the supplemental work. In total, this results in another reduction of 8.9 hours.

#### Evidence in support of the reasonableness in attorneys’ hourly rates:

Plaintiff’s counsel claims that he bills at an hourly rate of \$650. Here, the hourly rate claimed by Plaintiff’s counsel is not consistent with the prevailing hourly rates of senior-level attorneys practicing in Riverside County. The more reasonable hourly rate is \$600. A court may rely on its familiarity with the legal market in setting a reasonable hourly rate. (*Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009.) The court

may consider various other factors when determining a reasonable hourly rate, such as the attorney's skill and experience, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. (*Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632-633; see *Stratton v. Beck* (2017) 9 Cal.App.5th 483, 496 [trial court's conclusion \$450 hourly rate for experienced labor lawyer was supported by substantial evidence (e.g., labor lawyer's declaration showing familiarity with similarly experienced labor lawyers in Los Angeles area who charged \$500 to \$800 per hour and lawyer provided court with order from 2005 in which he was awarded \$350 per hour)].)

Plaintiff's Motion for Order Requiring Defendants to Pay Expenses of Proof GRANTED in Part.

Total hours reduced to 191.45 hours at rate of \$600/hr for total award of \$114,870.

**3.**

| CASE #      | CASE NAME                                                          | HEARING NAME                                                                                                                                                                                                         |
|-------------|--------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CVPS2509388 | ESPINOZA VASQUEZ VS INTERINSURANCE EXCHANGE OF THE AUTOMOBILE CLUB | MOTION TO COMPEL PLAINTIFF MARIA ESPINOZA VASQUEZ'S RESPONSES TO THE EXCHANGE'S FORM INTERROGATORIES, SET ONE, AND FOR SANCTIONS AGAINST PLAINTIFF AND HER COUNSEL BY INTERINSURANCE EXCHANGE OF THE AUTOMOBILE CLUB |

**Tentative Ruling:**

No opposition filed.

Defendant's Motion to Compel Responses to Form Interrogatories, Set One, GRANTED.

Plaintiff to provide code-complaint, verified responses, without objection, within 20 days.

Defendant's Request for Sanctions GRANTED. Plaintiff to pay attorney for Defendant \$285 (\$225 for 1 hour + \$60 costs) within 30 days.

Case Management Conference remains set for March 15, 2027.

4.

| CASE #      | CASE NAME                                                                   | HEARING NAME                                                                                                                                                                                                                                                |
|-------------|-----------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CVPS2509388 | ESPINOZA VASQUEZ VS<br>INTERINSURANCE<br>EXCHANGE OF THE<br>AUTOMOBILE CLUB | HEARING RE: MOTION TO<br>COMPEL PLAINTIFF MARIA<br>ESPINOZA VASQUEZ'S<br>RESPONSES TO THE<br>EXCHANGE'S FORM<br>INTERROGATORIES, SET TWO,<br>AND FOR SANCTIONS AGAINST<br>PLAINTIFF AND HER COUNSEL BY<br>INTERINSURANCE EXCHANGE OF<br>THE AUTOMOBILE CLUB |

**Tentative Ruling:**

No opposition filed.

Defendant's Motion to Compel Responses to Form Interrogatories, Set Two, GRANTED.

Plaintiff to provide code-complaint, verified responses, without objection, within 20 days.

Defendant's Request for Sanctions GRANTED. Plaintiff to pay attorney for Defendant \$285 (\$225 for 1 hour + \$60 costs) within 30 days.

Case Management Conference remains set for March 15, 2027.

5.

| CASE #      | CASE NAME                                                                   | HEARING NAME                                                                                                                                                                                                                                    |
|-------------|-----------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CVPS2509388 | ESPINOZA VASQUEZ VS<br>INTERINSURANCE<br>EXCHANGE OF THE<br>AUTOMOBILE CLUB | MOTION TO COMPEL PLAINTIFF<br>MARIA ESPINOZA VASQUEZ'S<br>RESPONSES TO THE<br>EXCHANGE'S REQUESTS FOR<br>PRODUCTION, SET ONE, AND<br>FOR SANCTIONS AGAINST<br>PLAINTIFF AND HER COUNSEL BY<br>INTERINSURANCE EXCHANGE OF<br>THE AUTOMOBILE CLUB |

**Tentative Ruling:**

No opposition filed.

Defendant's Motion to Compel Responses to Requests for Production, Set One, GRANTED.

Plaintiff to provide code-complaint, verified responses and responsive documents, without objection, within 20 days.

Defendant's Request for Sanctions GRANTED. Plaintiff to pay attorney for Defendant \$285 (\$225 for 1 hour + \$60 costs) within 30 days.

Case Management Conference remains set for March 15, 2027.

6.

| CASE #      | CASE NAME                                                                   | HEARING NAME                                                                                                                                                                                                                                                   |
|-------------|-----------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CVPS2509388 | ESPINOZA VASQUEZ VS<br>INTERINSURANCE<br>EXCHANGE OF THE<br>AUTOMOBILE CLUB | HEARING RE: MOTION TO<br>COMPEL PLAINTIFF MARIA<br>ESPINOZA VASQUEZ'S<br>RESPONSES TO THE<br>EXCHANGE'S SPECIAL<br>INTERROGATORIES, SET ONE,<br>AND FOR SANCTIONS AGAINST<br>PLAINTIFF AND HER COUNSEL BY<br>INTERINSURANCE EXCHANGE OF<br>THE AUTOMOBILE CLUB |

**Tentative Ruling:**

No opposition filed.

Defendant's Motion to Compel Responses to Special Interrogatories, Set One, GRANTED.

Plaintiff to provide code-complaint, verified responses, without objection, within 20 days.

Defendant's Request for Sanctions GRANTED. Plaintiff to pay attorney for Defendant \$285 (\$225 for 1 hour + \$60 costs) within 30 days.

Case Management Conference remains set for March 15, 2027.